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Case Number: 24NNCV03705 Hearing Date: August 17, 2026 Dept: P

[TENTATIVE] ORDER GRANTING

PLAINTIFFS' MOTION TO COMPEL MASHCOLE PROPERTY MANAGEMENT, INC'S PERSON MOST KNOWLEDGEABLE FOR DEPOSITION AND REQUEST FOR PRODUCTION OF DOCUMENTS and DENYING SANCTIONS

I. INTRODUCTION

Plaintiffs Qing Ye Li, individually and as successor in interest to the Estate of Xingya Zhang, and Hui Hung Zhang (collectively, "Plaintiffs") filed this action on August 20, 2024, alleging causes of action for negligent security, negligence, battery, and elder abuse against Defendants Jade Court San Gabriel, LP ("Jade Court"), Starboard Seaview Manager, Inc. ("Starboard"), Jerry Uy ("Uy"), Mia Constance Williams, Jaumaul Rashaud Jackson, and Does 1 through 100. The action arises from the December 26, 2022, death of Xingya Zhang.

On July 20, 2026, Plaintiffs filed the instant motion to compel the deposition of Defendant Mashcole Property Management, Inc.'s person most knowledgeable ("PMK") and production of documents. Mashcole filed an opposition on August 4, 2026. Plaintiffs filed a reply on August 10, 2026.

II. LEGAL STANDARD

Code Civ. Proc. §2025.450 provides relief where a party fails to appear for deposition without having served a valid objection. It provides as follows:

(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(b) A motion under subdivision (a) shall comply with both of the following:

(1) [omitted]

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

. . .

(g)(1) If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(2) On motion of any other party who, in person or by attorney, attended at the time and place specified in the deposition notice in the expectation that the deponent's testimony would be taken, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of that party and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one

subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

III. ANALYSIS

Plaintiffs bring this motion arguing Mashcole has failed to comply with its obligation to designate and produce a PMK capable of providing binding testimony regarding the categories identified in Plaintiffs' deposition notice. Plaintiffs contend that, despite multiple deposition notices and depositions, Mashcole has either failed to designate a PMK for the disputed categories or produced witnesses who were not adequately prepared to testify regarding information reasonably available to Mashcole. (Motion, pp. 2-6.)

Plaintiffs therefore seek an order compelling Mashcole to designate and produce a PMK as to Categories Nos. 1, 4, 6, 8, 9, 10, 12, 13, 14, 15, 16, 18, 20, 21, 22, 24, 25, 26, 27, 28, 30–37, and 39–41. Plaintiffs further request that Mashcole either identify the testimony that binds Mashcole as to each category or state that no current or former person has information responsive to the category. Alternatively, if Mashcole intends to produce an additional corporate representative, Plaintiffs request that the representative be adequately prepared to testify as to the designated categories and that sanctions be imposed for the time and expense incurred in connection with the prior allegedly unprepared witnesses. (Reply, p. 4.)

Mashcole opposes the motion on both procedural and substantive grounds. Procedurally, Mashcole argues Plaintiffs rely on Code of Civil Procedure section 2025.230, which sets forth an entity's obligation to designate a PMK but does not itself authorize a motion to compel. Mashcole further argues that, to the extent Plaintiffs challenge the adequacy of testimony or document production from witnesses who already appeared for deposition, the motion is governed by section 2025.480 and is untimely because it was not brought within the statutory 60-day period. Mashcole also contends the relief requested in the motion and notice is unclear. (Opposition, pp. 11-13.)

Substantively, Mashcole argues it complied with its PMK obligations by producing multiple witnesses for deposition, including designated witnesses, Zach Ghaly and Tracy Rodriguez, for Categories Nos. 10, 21, 37, 39, 40, and 41. As to the remaining categories, 1,

4, 6, 8, 9, 12, 13, 14, 15, 16, 18, 20, 22, 24, 25, 26, 27, 28, 30-36, Mashcole maintains its objections were proper because the categories are vague, ambiguous, overbroad, and insufficiently limited in time and scope. Mashcole therefore contends there has been no failure to produce a PMK warranting an order compelling further deposition testimony. (Opposition, pp. 13-18.)

Additionally, as to Categories Nos.

6 and 32, Mashcole argues the categories improperly seek information protected by the attorney-client privilege and attorney work-product doctrine because they broadly seek communications concerning the subject incident and communications to tenants regarding evictions, without excluding privileged communications. (Opposition, p. 16.)

The Court makes the following findings.

First, given the lengthy history of the parties' PMK discovery, the multiple depositions already taken, and the impending trial date, the Court finds Mashcole must provide substantive PMK testimony as to the disputed categories. Although Mashcole has produced several witnesses for deposition, the record reflects that numerous noticed categories remain unanswered, either because Mashcole did not designate a PMK for the category or because the witness produced was not adequately prepared to provide testimony on behalf of Mashcole.

The Court agrees with Plaintiffs that the production of a corporate representative who is not adequately prepared to testify regarding information known or reasonably available to the entity does not satisfy Mashcole's obligations under Code of Civil Procedure section 2025.230. Under these circumstances, the Court treats Mashcole's failure to produce an adequately prepared PMK as a failure to produce a PMK as to the disputed categories, rather than merely a request to compel further answers from a witness who previously testified. Thus, the Court finds an order compelling Mashcole to provide code-compliant PMK testimony as to the remaining disputed categories is appropriate.

As to Mashcole's objections to categories 1, 4, 6, 8, 9, 12, 13, 14, 15, 16, 18, 20, 22, 24, 25, 26, 27, 28, 30-36, the Court finds the objections largely without merit. Many of the categories are otherwise limited by their subject matter, including the SUBJECT

PROPERTY, SUBJECT INCIDENT, particular individuals, or specific communications. The Court therefore overrules Mashcole's objections based on vagueness, ambiguity, and overbreadth.

Second, as to the four communications identified on Mashcole's privilege log, Plaintiffs argue Mashcole has not established the preliminary facts necessary to support its assertion of attorney-client privilege. Three of the communications are between Jerry Uy and Ayden Shabbir and do not include an attorney as a sender or recipient. (Reply, p. 5.) Although the absence of an attorney does not necessarily defeat the privilege where a communication between employees transmits or facilitates legal advice, Mashcole bears the initial burden of establishing facts supporting application of the privilege. (Costco Wholesale Corp. v. Superior Court (2009) 47 Cal.4th 725, 733.) Here, Mashcole has not met its threshold burden of establishing the privilege. Thus, the Court GRANTS the request, and will conduct an in-camera review to determine where requirements for privilege are met.

Third, as to Request for Production

No. 3, Mashcole maintains that it previously produced responsive documents in connection with its Further Amended Response to Plaintiffs' Eighth Deposition Notice and has produced all responsive documents it was able to locate and obtain. (Opposition, p. 18.) In reply, Plaintiffs contend the production remains incomplete because additional supplemental discovery responses were served in the Williams action after Mashcole's last production and have not been produced. (Reply, p. 5.) To the extent Mashcole has additional responsive documents in its possession, custody, or control that have not previously been produced, Mashcole shall produce them. If no additional responsive documents exist, Mashcole shall provide a code-compliant response so stating

Fourth, the Court DENIES

Plaintiffs' request for sanctions. Although further PMK testimony is warranted, the record reflects that Mashcole continued to meet and confer regarding the disputed PMK categories and represented that it was willing to identify the Mashcole witnesses responsive to each category. (Casey Decl., ¶ 6.) Further, Plaintiffs do not adequately identify statutory authority supporting the sanctions sought for expenses incurred in connection with the prior depositions. Given Mashcole's continued efforts to resolve the dispute, the Court finds sanctions are not warranted under the circumstances.

IV. ORDER

The Court

GRANTS the motion to compel the deposition of Mashcole's PMK. Mashcole shall provide code-complaint PMK testimony as to categories Nos. 1, 4, 6, 8, 9, 10, 12–16, Mashcole 18, 20–22, 24–28, 30–37, and 39–41. Mashcole shall identify the witness whose testimony binds Mashcole as to each category or, if necessary, designate and produce an adequately prepared PMK to testify as to the category.

As to No.

3, Mashcole shall produce any additional responsive documents in its possession, custody, or control that have not previously been produced. If no additional responsive documents exist, Mashcole shall provide a code-compliant response so stating.

The Court

further GRANTS in camera review of the four emails identified in Exhibit O to Plaintiff's motion.

The Court DENIES monetary sanctions.

The parties are encouraged to meet and confer regarding the appropriate PMK designation for each category to avoid unnecessary or duplicative depositions

Plaintiffs are to give notice.

Dated: August 17, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT